

ing was dismissed for want of equity and on the merits. But the suit was one which required the presence of the Secretary, and the bill should have been dismissed for want of a necessary party. *Gnerich v. Rutter*, 265 U. S. 388; *Warner Valley Stock Co. v. Smith*, 165 U. S. 28, 34. The statutory direction to cause quarterly payments to be made (subject to § 2087) is addressed to the Secretary. The power and responsibility are his. Neither Wright nor Wise has any primary authority in the matter. They can act only under, and in virtue of, the Secretary's general or special direction. In the absence of it no payments or disbursements properly can be made. Authority in the Superintendent to supervise such payments is not authority to cause them to be made. The statement of this Court in the *Gnerich Case* (p. 391) is pertinent here: "They act under his direction and perform such acts only as he commits to them by the regulations. They are responsible to him and must abide by his direction. What they do is as if done by him. He is the public's real representative in the matter, and, if the injunction were granted, his are the hands which would be tied." In the *Smith Case*, suit was brought against the Secretary of the Interior and the Commissioner of the General Land Office to enjoin them from exercising further jurisdiction with respect to the disposition of certain public lands; from further trespassing upon complainant's right of quiet possession; and to command the issue of patents to plaintiff. The suit abated as to the Secretary because of his resignation, and it was held that it could not be continued against the Commissioner alone. We quote from the opinion (pp. 34-35): "The purpose of the bill was to control the action of the Secretary of the Interior; the principal relief sought was against him; and the relief asked against the Commissioner of the General Land Office was only incidental, and by way of restraining him from executing the orders of his official head. To main-

tain such a bill against the subordinate officer alone, without joining his superior, whose acts are alleged to have been unlawful, would be contrary to settled rules of equity pleading."

Counsel for appellant directs our attention to other cases, where this Court proceeded to determine the merits notwithstanding the suits were brought against inferior or subordinate officials without joining the superior. We do not stop to inquire whether all or any of them can be differentiated from the case now under consideration, since in none of them was the point here at issue suggested or decided. The most that can be said is that the point was in the cases if anyone had seen fit to raise it. Questions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be considered as having been so decided as to constitute precedents. See *New v. Oklahoma*, 195 U. S. 252, 256; *Tefft, Weller & Co. v. Munsuri*, 222 U. S. 114, 119; *United States v. More*, 3 Cr. 159, 172; *The Edward*, 1 Wheat. 261, 275-276. In any event, this case falls within the principles definitely established by the *Gnerich* and *Smith Cases*.

Decree reversed with directions to dismiss the bill for want of a necessary party.

NORTON ET AL. v. LARNEY, A MINOR, ET AL.

APPEAL FROM THE CIRCUIT COURT OF APPEALS FOR THE
EIGHTH CIRCUIT

No. 146. Submitted December 8, 1924.—Decided January 5, 1925.

1. An averment in a bill to quiet title to a Creek Indian allotment that the plaintiff went into possession by authority of treaties between the Creek Nation and the United States and the laws of Congress dealing with the lands and individuals of the Creek

- Nation, is insufficient to show that the case arose under those laws and treaties. P. 513.
2. When a right to land set up by the plaintiff in a suit to quiet title would be defeated by a construction of an act of Congress contended for by the defendant, but supported by the opposite construction, the case arises under a law of the United States, within the meaning of Jud. Code, § 24. P. 515.
 3. If the jurisdictional facts are not alleged in the bill, it is the duty of the District Court to dismiss the suit, unless those facts be supplied by amendment. *Id.*
 4. The District Court, while it has control of the record, even after reversal and remand, can allow the initial pleading to be amended to show jurisdictional facts appearing of record. P. 516.
 5. Such an amendment will also be allowed in this Court (Rev. Stats., § 954) when the jurisdictional facts are in the record, and indisputable, and the amendment can occasion no surprise. *Id.*
 6. Of the findings made by the Commissioner to the Five Civilized Tribes in enrolling children, under the Act of March 3, 1905, c. 479, 33 Stat. 1071, those upon matters merely incidental or collateral to the direct issues presented by the statute are not conclusive in subsequent proceedings—e. g., as to whether a child's parents were known by aliases and the precise numbers of their enrollments. P. 517.
 7. A latent ambiguity in such findings, may be resolved by parol evidence. *Id.*
 8. Where two courts have reached the same conclusion on a question of fact, it will be accepted here unless clearly erroneous. P. 518.
- 289 Fed. 395, affirmed.

APPEAL from a decree of the Circuit Court of Appeals affirming a decree of the District Court in favor of the appellee, Larney, in his suit to quiet title to land allotted to him as a citizen of the Creek Nation.

Mr. Nathan A. Gibson and Mr. Joseph L. Hull for appellants. *Mr. Thomas L. Gibson and Mr. Glenn R. Horner* were also on the brief.

Mr. Elias J. Van Court for appellees. *Mr. Clark Nichols and Mr. Horace D. Reubelt* were also on the brief.